

Court No. - 40

Case :- WRIT - C No. - 12067 of 2018

Petitioner :- Sanjeev Kumar

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Roshan Kumar Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

One of the glaring feature pointed out in this case is about the consumption of electricity by the petitioner in the month of May, 2017 as indicated in paragraph no.12 of the writ petition. Sri Ankit Saran, learned counsel for the respondent nos.3 and 4 prays that he may be granted three days' time to obtain instructions in relation to the aforesaid dispute of consumption raised by the petitioner which according to the petitioner is absolutely disproportionate and sporadic as compared to the periodical consumption of the petitioner referred to in the said paragraphs.

Put up on Monday (09.04.2018).

Order Date :- 3.4.2018

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Learned counsel for the respondent Sri Ankit Saran prays that the matter be taken up on 13.04.2018 to enable him to comply to answer the queries dated 3rd April, 2018.

Put up on 13th April, 2018.

Order Date :- 9.4.2018

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Hon'ble Shashi Kant,J.

Learned counsel for the respondent nos. 3 and 4 Electricity Department, Sri Ankit Saran has provided a copy of the instructions dated 11.04.2018 to the learned counsel for the petitioner and has also placed it before the Court. From the records, we find that this also has to be taken care of by the petitioner before proceeding to challenge any proceedings of recovery before this Court.

Accordingly, we permit the petitioner to withdraw the writ petition and file a proper writ petition if the law so permits in accordance with the law laid down by this Court in the case of ***Ashok Kumar & Others vs. State of U.P. & others, 2008 (6) ADJ 660*** as well as the provisions of Electricity Act and U.P. Electricity Supply Code, 2005.

The writ petition stands dismissed as withdrawn with the said liberty.

Order Date :- 13.4.2018

Monika